Overview of Home and Community-Based Services (HCBS) Waivers and Programs	Number	Page
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Revision Date:
March 1, 2026

Background:
Home and Community-Based Services (HCBS) waivers and programs provide certain services to eligible Non-Modified Adjusted Gross Income (Non-MAGI) individuals with skilled nursing care needs who wish to remain at home or in the community setting. These programs prevent individuals from having to enter a nursing facility or medical institution. Waiver administrators, Care-Coordinating Agencies (CCA), Aging Independence Services (AIS), and In-Home Supportive Services (IHSS) determine eligibility and enroll customers to HCBS waivers and programs and may notify the county when a customer is approved for a waiver. The goal is to increase enrollment by applying the special rules when determining eligibility.

Purpose:
This section provides an overview of the HCBS waivers and programs including spousal impoverishment (SI) provisions for the HCBS population. References to property determinations for current evaluations were added due to the reinstatement of the property evaluation for Non-Modified Adjusted Gross Income (Non-MAGI) Medi-Cal effective January 1, 2026.

Policy:
A. HCBS Waivers and Programs
There are currently five HCBS waivers in effect in San Diego:
- HCBS for the Developmentally Disabled (HCBS-DD) – commonly known as the Department of Developmental Services (DDS) Waiver.
- Home and Community-Based Alternatives (HCBA).
- Multipurpose Senior Services Program (MSSP).
- Assisted Living Waiver (ALW).
- Acquired Immune Deficiency Syndrome (AIDS).

HCBS programs include but are not limited to:
- IHSS Community First Choice Option (CFCO).
- Program of All-inclusive Care for the Elderly (PACE).
- Senior Care Action Network (SCAN) Fully Integrated Dual Eligible Special Needs Plan.

A customer may initiate the HCBS waiver or program request by:
- Making a written or verbal request.
- Answering “yes” to one of the following questions on the application or renewal form:
  - “Does anyone in your household need help with long-term care or home and community-based services?”
  - “Do you want information on the Personal Care Services Program, an in-home care program for aged, blind, or disabled persons (also called In-Home Supportive Services)?”
- Contacting a waiver administrator or a CCA that works with the waiver administrator.

B. Institutional Deeming

Most HCBS waivers and programs allow for the application of special rules under Non-MAGI Medi-Cal, also known as the institutional deeming process. Before applying institutional deeming, Medi-Cal eligibility must first be determined by including the property and income of all household members based on Medi-Cal hierarchy. This includes the application of SI provisions when appropriate. Refer to Medi-Cal Program Guide (MPG) 05.18.01C for guidance on SI provisions. Institutional deeming rules must be applied to individuals who are ineligible due to excess property or would have a Share of Cost (SOC).

Institutional deeming applies to the following households:

- Married HCBS participants with no community spouse (for example, if the other aged or disabled spouse is institutionalized).
- Married couples and both spouses are HCBS waiver or program participants.
- HCBS participant child 20 years or younger with family income or property that makes them ineligible to no SOC Medi-Cal.

Institutional Deeming requirements:

- Each HCBS participant is treated as institutionalized and in a Medi-Cal Family Budget Unit (MFBU) of one. They may link other family members who request Medi-Cal such as those on Public Assistance (PA).
- Community property is split equally between spouses and separate property assigned to the owner. Each spouse has the full property limit of $130,000.
- Parental income and property is not considered for a child, even though the child lives in the home.
- Must be eligible for full scope Medi-Cal with or without a SOC. A customer residing in a nursing home under the limited state-only aid code of 53 is not eligible.
- A disability determination is not required unless:
  - Eligibility is based on a Medi-Cal program which requires that the customer be disabled.
  - The customer has no other basis for linkage to Medi-Cal.
  - There would be an advantage if the customer were disabled, for example, income deductions allowable only for disabled individuals.

Institutional deeming does **not** apply to Registered Domestic Partners (RDP) or the AIDS Waiver. Customers who are on an HCBS waiver or program waiting list cannot be institutionally deemed while on the list. Their eligibility must be re-evaluated back to the month the HCBS waiver or program enrollment is confirmed if they were otherwise eligible to Medi-Cal.

Married Spouses Participating in an HCBS Waiver or Program

If either spouse is determined eligible with a SOC after institutional deeming, staff must determine if a community spousal income allocation is needed. This may result in one or both spouses being eligible to no SOC Medi-Cal. Assume that each spouse has a one-half community ownership interest in the total monthly gross income of both spouses. Refer to Processing Guide 25 Eligibility Processes for HCBS Waivers Section 3 and Desk Aid 129 Examples of Institutional Deeming for Married Couples Both Receiving HCBS.

Both RDPs Requesting an HCBS Waiver or Program

When both RDPs request HCBS services, each is evaluated in their own separate MFBU and institutional deeming does not apply. If the eligibility results reflect a SOC, approve benefits using the appropriate Medi-Cal aid code.

Supplemental Security Income (SSI) Child and Personal Needs Allowance (PNA)

Federal law allows a previously institutionalized SSI child the same PNA as an institutionalized SSI child if applying the HCBS waiver. The Social Security Administration (SSA) must confirm that a child is in a waiver program before the PNA can begin or continue. The information may be requested at the time waiver coverage begins and then at the SSA redetermination.

Before releasing verification to SSA that the child is in a waiver program, staff must:

- Obtain authorization from the child's parent or guardian using form Medi-Cal Waiver Information and Authorization (DHCS 7071).
- Once the form is signed and returned by the child's parent or guardian, complete the County Department section and forward it to the SSA personnel or customer.

Note: In some cases, when the waiver customer begins receiving the PNA, MEDS will convert the waiver aid code to aid code 60. If the waiver recipient is still in the home and is ineligible for a regular SSI payment, workers must contact Medi-Cal program and request that the aid code be corrected by the Department of Health Care Services (DHCS).

C. SI provisions for Married Couples and RDPs

Staff must screen for and apply SI provisions (if applicable) for married couples or RDPs at each evaluation when only one spouse is participating or is on a waiting list for any HCBS waiver or program and has verified they need Nursing Facility Level of Care (NFLOC) for at least 30 consecutive days. When the customer is not on a HCBS waiver or a program participant, the county must assist them with verifying NFLOC.

Under SI provisions for HCBS:

- The Federal Poverty Level (FPL) and Maintenance Need limit for one person is used instead of the $35 Long Term Care (LTC) needs allowance.
- Spouses are evaluated in separate MFBUs.
- Non-MAGI Medi-Cal income deductions and disregards are applied.
- Spousal and dependent family member income allocations are applied to reduce or eliminate the HCBS spouse's SOC.
- The Community Spouse Resource Allowance (CSRA) is applied to the property evaluation.

Note: MAGI evaluations are tax household composition based, therefore spousal and dependent family member allocation rules **do not** apply. For Non-MAGI, the spousal income or property allocation may be different when there is a court order, a fair hearing decision, or the couple agrees to a lower amount (income only).

Any IHSS request made by a customer or Authorized Representative (AR) is adequate to initiate a referral to IHSS, however, the IHSS-CFCO program is the **only** one that provides the appropriate level of care to initiate the application of SI provisions.

Effective Date for SI Provisions

The applicable application date (the effective date that SI provisions may be applied) is the date when **both** of the criteria below are met:

- The date that a request for HCBS or IHSS was made.
- The date that NFLOC was established through a Needs Assessment issued by the HCBS waiver or program coordinator, or the Doctor's Verification form (MC 604 MDV).

Example:
Customer applies for Medi-Cal on June 02, 2024, and marks the question on the application requesting HCBS/IHSS. The MC 604 MDV confirms that the customer requires NFLOC as of March 15, 2024. The SI applicable application date is June 02, 2024**.** Refer to Desk Aid 94 Examples of the Applicable Application Date for SI Provisions and SI Provisions Applied Retroactively.

Needs Assessment

A Needs Assessment establishes that the customer meets the NFLOC for at least 30 consecutive days and may reference the HCBS waiver program for which the customer is approved. When the Needs Assessment has been completed by IHSS or an HCBS coordinator prior to the customer's application for Medi-Cal, SI provisions apply.

Doctor's Verification Form (MC 604 MDV)

The MC 604 MDV process is initiated when a Needs Assessment for a waiver program or IHSS-CFCO has not been completed. This includes individuals on a waiting list. The MC 604 MDV is required to be signed by the customer, their spouse or an AR.

This form:

- Authorizes the customer's doctor to release information to the county,
- Establishes if the customer meets the NFLOC for at least 30 consecutive days in the absence of HCBS waiver or program participation and,
- Begins the Continuous Period of Institutionalization.

Without a waiver Needs Assessment, SI provisions **do not** apply until the MC 604 MDV is completed, returned, and validated by the customer's doctor. When the completed form is received, workers must apply SI provisions retroactively if the date of NFLOC and the date of the request for IHSS/HCBS waiver program or services occurred in the past but on or after January 1, 2014.

Note: The MC 604 MDV and the Needs Assessment serve different functions and are not interchangeable. Both may be required depending on the timing of a customer's request for services and their individual circumstances.

Continuous Period of Institutionalization

The Continuous Period of Institutionalization is the length of time an institutionalized spouse is eligible to SI provisions before being placed on a waiting list or participating in an HCBS waiver or program services. It begins on the applicable application date as described above. If an approved request for HCBS results in the customer's placement on a waiting list, the SI provisions continue to apply.

The Continuous Period of Institutionalization ends when:

- The request for HCBS is denied.
- It is determined the customer is not an IHSS-CFCO recipient (inactive 2K aid code in MEDS).
- The HCBS or institutionalized spouse no longer receives HCBS services, inpatient care in a medical institution, or nursing facility for a full calendar month.
- The customer fails to complete the HCBS application process.

Continuous Application of SI Provisions

Once it is determined that SI provisions apply, the HCBS spouse remains eligible unless:

- There is a change in circumstances (e.g. death, moved out of state, dissolution of marriage, or the Continuous Period of Institutionalization ends).
- The request for HCBS is denied for not meeting the clinical guidelines.
- The customer is no longer identified as an IHSS-CFCO recipient.
- The community spouse also requests and receives HCBS services.
- Both spouses are enrolled in IHSS-CFCO and are ineligible to no SOC Medi-Cal. In this instance, one spouse may voluntarily switch to a personal care services IHSS program so that their spouse can receive HCBS services and have SI provisions applied.

Note: Staff must maintain communication with the IHSS Social Worker or the Waiver Administrator/CCA as needed to avoid a delay in determining eligibility to services. This may require a Release of Information from the customer, community spouse or AR.

D. Retroactive Application of SI Provisions for HCBS

The SI provisions are applied retroactively under any of the following circumstances in cases where there would have been an eligible HCBS spouse on or after January 1, 2014, for:

- Customers who met the criteria for SI in the past but were not evaluated.
- Customers participating in the IHSS-CFCO program and have a SOC.
- New applications or annual renewals.
- Fair hearing requests.
- Customers requesting a retroactive redetermination.
- Customers denied/discontinued due to excess income or property based on the community spouse residing in their own home (not institutionalized).

The retroactive evaluation of SI provisions for HCBS must be processed **before** eligibility is established when the CSRA applies and must be confirmed prior to rescinding current eligibility.

E. Retroactive Beneficiary Reimbursement Process (BRP)

A customer may request reimbursement for out-of-pocket Medi-Cal claims or services provided by an IHSS enrolled provider under the BRP. Refer to MPG 04.02.10J for the BRP, also known as the Conlan process.

F. Annual Renewal

To continue using SI provisions, only confirmation of continued HCBS waiver participation or NFLOC status is needed at renewal. The income of the community spouse and/or other family members is necessary to determine ongoing eligibility and applicable allocations. Once eligibility under SI

provisions has been established, staff must not recalculate the CSRA or verify the property of the community spouse at the annual renewal.

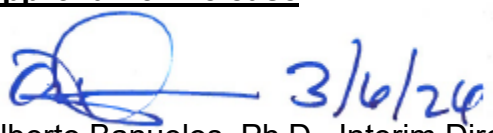
Procedures:
Refer to Medi-Cal Processing Guide 25 - Eligibility Processes for HCBS Waiver and Program.

Program Impacts:
None

References:
MEM PROC 19D
MEPM Letters No. 255, 307
ACWDL 87-77, 90-01, 90-03, 91-84, 03-22, 03-31, 03-31E, 12-36, 17-15, 17-25, 18-19, 20-15, 22-25, 23-07, 23-13, 23-16, 23-18, 25-14
MEDIL 14-38, 18-10, 21-07, 21-30, 23-51, 24-16

Sunset Date:
This policy will be reviewed for continuance by February 28, 2029.

Approval for Release:



3/6/24

Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Revision Date:
February 1, 2025

Background:
The Department of Health Care Services (DHCS) received federal approval from the Federal Centers for Medicare and Medicaid Services (CMS) for the Home and Community-Based Services Developmentally Disabled (HCBS-DD) Waiver. The Department of Developmental Services (DDS) Waiver is a subset of the HCBS-DD Waiver.

The DDS Waiver is available to customers who, regardless of their current age, were diagnosed as developmentally disabled prior to their 18th birthday. These customers must live at home and meet the admission criteria for an Intermediate Care Facility for the Developmentally Disabled (ICF-DD) as defined in the California Health and Safety Code.

The San Diego Regional Center (SDRC) determines if the customer/customer's family meets the criteria for the DDS Waiver program by reviewing the customer's medical, social, and developmental care needs. The waiver provides eligible participants, the ability to receive care at home instead of care provided in an ICF-DD or a State Developmental Center.

Purpose:
This section provides guidance for HCBS-DD Waiver eligibility determination and policy. This section has been revised to remove property references due to asset elimination and requirement to meet Satisfactory Immigration Status (SIS) for customers effective January 1, 2024.

Policy:
A. Referring Agency
When the SDRC approves a customer, they will refer the customer to apply for Medi-Cal for an initial eligibility determination or redetermination using form DHCS 7096 DDS Waiver Referral. If no responsible relative is available to act on behalf of the customer, or the responsible relative does not wish to apply on their behalf, the SDRC representative may do so.

Staff may **not** share eligibility information with SDRC without a signed Authorization for Release of Information.

The Regional Center for San Diego and Imperial Counties is located at:

4355 Ruffin Road Ste. 205	Phone: 858-576-2996
San Diego, CA 92123-1648	Fax: 858 576-2873

B. Effective Begin Date of Eligibility and Retroactive Coverage
The effective begin date of eligibility to apply institutional deeming under a DDS Waiver is the date when the following two requirements are met:

- The referring agency determines that the customer is medically eligible to participate in the waiver. Indicated by the date on the waiver referral.
- An eligibility determination establishes that the waiver participant meets the Medi-Cal eligibility requirements under the waiver (for example, when institutional deeming is necessary).

Regular Medi-Cal rules apply for retroactive requests. For retroactive requests requiring the application of institutional deeming, contact the representative of the referring agency to inquire if the waiver also covers the retroactive period. The response must be documented in the Journal Entry (JE). In lieu of completing the retroactive section of the Statement of Facts (SOF) the referral form may include a cover letter requesting retroactive Medi-Cal.

C. Institutional Deeming
When a DDS waiver referral is received and the customer is determined ineligible for Mega Mandatory groups, Modified Adjusted Gross Income (MAGI) Medi-Cal, or has a Share of Cost (SOC) using regular Medi-Cal rules with the total household's income, the HCBS customer must be screened for institutional deeming. Refer to Medi-Cal Program Guide (MPG) section 05.18.01B.

D. Aid Codes
When Spousal Impoverishment (SI) provisions are applied, the customer is placed in a regular Non-MAGI program (Aged and Disabled, 250% Working Disabled, or Medically Needy).

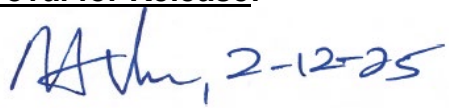
The following aid codes are used for DDS Waiver eligible individuals when institutional deeming is applied:
- 6V - DD Waiver Zero SOC.
- 6W- DD Waiver SOC.

E. Notice of Action (NOA)
When SI provisions are applied, issue the appropriate Non-MAGI program NOA to the customer. The appropriate NOA's for the DDS waiver are:
- MC 341 DDS Waiver approval.
- MC 342 DDS Waiver denial/discontinuance.

Procedure:
Refer to Medi-Cal Processing Guide 25 - Eligibility Processes for HCBS Waivers

References:
MEPM 19D
ACWDL 17-15, 17-25, 18-19, 22-25, 23-08
MEDIL 14-38

Sunset Date:
This policy will be reviewed for continuance by February 29, 2028.

Approval for Release:

2-12-25
Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
March 1, 2026

Background:
The Department of Health Care Services (DHCS) received approval from the Federal Centers for Medicare and Medicaid Services (CMS) for the Home and Community-Based Alternatives (HCBA) waiver. San Ysidro Health (SYH) is the current waiver agency contracted by DHCS for the County of San Diego.

Purpose:
This section provides guidance when determining Medi-Cal eligibility for HCBA waiver eligible individuals. This section was revised to include property guidance due to the reinstatement of the property evaluation for Non-Modified Adjusted Gross Income (MAGI) Medi-Cal determinations effective January 1, 2026.

Policy:
A. Referring Agency
SYH determines who meets the criteria for the HCBA Waiver. Customers who require Nursing Facility Level of Care (NFLOC) or sub-acute services for at least 30 consecutive days but wish to receive these services and supports while living at home or in the community may be eligible for waiver services or be placed on a waiting list.

HCBA waiver services include but are not limited to case management, skilled nursing, home health aides, language services, speech, hearing, family training/therapy, physical therapy, Waiver Personal Care Services (WPCS), and adaptations to the home. Inpatient status is not required prior to waiver services enrollment.

Some customers receiving benefits under the Department of Developmental Services (DDS) waiver may be referred to the county by SYH for transition to the HCBA waiver due to a better match for services.

When an HCBA Waiver Eligibility Notice or request to transition from a DDS waiver to an HCBA waiver is received the customer is evaluated based on the full Medi-Cal hierarchy and placed under the program that is most beneficial. County staff and SYH must maintain open communication to establish eligibility at initial application, renewal, or a change in circumstances evaluation. County staff may release information to SYH without a signed authorization.

B. Effective Begin Date and Retroactive Coverage
The effective begin date to apply institutional deeming under an HCBA waiver is the date the following requirements are met:

- The referring agency determines that the customer is medically eligible to participate in the waiver (the date on the waiver referral).
- An eligibility determination establishes that the customer meets the eligibility requirements under the waiver.

Regular Medi-Cal rules apply for retroactive requests. In cases where institutional deeming applies, staff must contact the representative of the referring agency to inquire if the waiver also covers the

retroactive period. The response must be documented in a Journal Entry (JE). In lieu of completing the retroactive section of the Statement of Facts (SOF), the referral form may include a cover letter requesting retroactive Medi-Cal.

C. Spousal Impoverishment (SI) and Institutional Deeming

When a DDS waiver referral is received, staff must complete an evaluation following the Medi-Cal hierarchy using the household's income and property. If the customer is eligible to Medi-Cal with no Share of Cost (SOC), staff will approve that program. When the HCBS customer is determined ineligible for Mega Mandatory groups or MAGI Medi-Cal, has a SOC, or is property ineligible using regular Medi-Cal rules, they must be screened for institutional deeming. Refer to Medi-Cal Program Guide (MPG) section 05.18.01B and 05.18.01.C.

When both spouses are receiving HCBS services, and one or both are ineligible to no SOC Medi-Cal after applying institutional deeming, an evaluation is required to determine if community property spousal income allocation applies. Refer to MPG 05.18.01B.

D. Aid Codes

The following aid codes are used for HCBA waiver eligible individuals when institutional deeming is applied:

- 6X – HCBA Waiver Zero SOC.
- 6Y – HCBA Waiver SOC.

Regular Non-MAGI aid codes (e.g. Aged and Disabled, 250% Working Disabled, or Medically Needy) are used when Spousal Impoverishment (SI) provisions are applied.

E. Notice of Action (NOA)

NOAs for the DDS waiver are:

- HCBA Waiver approval (MC 343).
- HCBA Waiver denial/discontinuance (MC 344).

When SI provisions are applied, staff must issue the appropriate Non-MAGI program NOAs to the customer.

Procedure:

Medi-Cal Processing Guide 25 - Eligibility Processes for HCBS Waivers

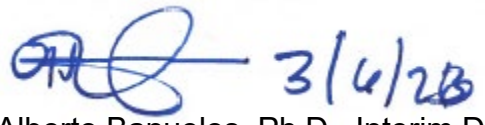
References:

ACWDL 03-31, 03-31E, 17-25, 18-19, 22-25, 23-07, 25-14
MEDIL 14-38, 23-51, 24-16
MEPM 19D

Sunset Date:

This policy will be reviewed for continuance by February 28, 2029.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Revision Date:
March 1, 2026

Background:
The Department of Health Care Services (DHCS) received approval from the Centers for Medicare and Medicaid Services (CMS) for the Multipurpose Senior Services Program (MSSP) waiver. The County Department of Aging and Independence Services (AIS) is the local administrator for the MSSP waiver under the California Department of Aging (CDA).

Purpose:
This section provides guidance for MSSP waiver eligibility determinations. The section was revised to add references to property due to the reinstatement of the property evaluation for Non-Modified Adjusted Gross Income (MAGI) Medi-Cal effective January 1, 2026.

Policy:
A. Referring Agency
AIS completes a needs assessment and determines eligibility for the MSSP waiver. Once the customer is approved, AIS refers them to be evaluated for Medi-Cal using the CDA Waiver Referral (MC 364). A request for MSSP waiver services may also be initiated by the customer, spouse, or Authorized Representative (AR) when applying for Medi-Cal.

The MSSP waiver is limited to customers who are:
- Aged (age 65 or older).
- Receiving full scope Medi-Cal.
- Certifiable for placement in a nursing facility.
- Living within the AIS service area.
- Able to be served within the program's cost limitations.
- Eligible for care management services.

Many waiver participants live at home and receive Medi-Cal prior to waiver approval. Services include case management, adult social day care, housing assistance, protective services, personal care, respite care, transportation, meal, and special communication services. Staff may provide information regarding the customer's case to AIS without requiring a signed authorization for release of information (ROI).

B. Spousal Impoverishment (SI) and Institutional Deeming
When an MSSP waiver referral is received, staff must complete an evaluation following the Medi-Cal hierarchy using the household's income and property. If the customer is eligible to Medi-Cal with no share of cost (SOC), staff will approve that program. When the MSSP customer is determined ineligible for Mega Mandatory groups or MAGI Medi-Cal, has a Share of Cost (SOC), or is property ineligible using regular Medi-Cal rules, they must be screened for institutional deeming. Refer to Medi-Cal Program Guide (MPG) section 05.18.01B.

When both spouses are receiving HCBS services, and one or both are ineligible to no SOC Medi-Cal after applying institutional deeming, an evaluation is required to determine if community property spousal income allocation applies. Refer to MPG 05.18.01B.

C. Effective Begin Date of Eligibility and Retroactive Coverage

The effective begin date of eligibility to apply institutional deeming under the MSSP waiver is the date when the following two requirements are met:

- The referring agency determines that the customer is medically eligible to participate in the waiver. Normally, this is the date on the MSSP waiver referral.
- An eligibility determination establishes that the waiver participant meets the Medi-Cal eligibility requirements under the waiver.

Regular Medi-Cal rules apply for retroactive requests. In cases where institutional deeming applies, staff must contact the representative of the referring agency to inquire if the waiver also covers the retroactive period. The response must be documented in a Journal Entry (JE). In lieu of completing the retroactive section of the Statement of Facts (SOF), the referral form may include a cover letter requesting retroactive Medi-Cal.

D. Aid Codes

The following aid codes are used for MSSP Waiver eligible when institutional deeming is applied:

- 1X – MSSP Waiver Zero SOC.
- 1Y – MSSP Waiver SOC.

Regular Non-MAGI aid codes (e.g. Aged and Disabled, 250% Working Disabled, or Medically Needy) are used when Spousal Impoverishment (SI) provisions are applied.

E. Notice of Action (NOA)

NOAs for the MSSP waiver are:

- MSSP Waiver approval (MC 365).
- MSSP Waiver denial/discontinuance (MC 366).

When SI provisions are applied, staff must issue the appropriate Non-MAGI program NOAs to the customer.

Procedure:

Medi-Cal Processing Guide 25 - Eligibility Processes for HCBS Waivers

References:

ACWDLs 03-22, 17-25, 18-19, 22-25, 23-13, 23-16, 25-14
MEDIL 14-38, 23-51
MEPM Article 19D

Sunset Date:

This policy will be reviewed for continuance by February 28, 2029.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Assisted Living Waiver (ALW)	Number	Page
	05.18.05	1 of 3

Revision Date:
March 1, 2026

Background:
The Assisted Living Waiver (ALW) is approved by The Centers for Medicare and Medicaid Services (CMS). If otherwise eligible to full scope benefits, individuals enrolled in an ALW have no share of cost (SOC) Medi-Cal. These customers must reside in participating Residential Care Facilities for the Elderly (RCFE), Adult Residential Facilities (ARF), or Publicly Funded Senior and/or Disabled Housing (PSH) and they receive many of the services that would be available in a long-term care facility including care coordination.

Purpose:
This section provides guidance for processing ALW referrals. The section was revised to include property information due to the reinstatement of the property evaluation for Non-Modified Adjusted Gross Income (MAGI) Medi-Cal effective January 1, 2026.

Policy:
A. Referring Agency
The waiver is administered by the Department of Health Care Services (DHCS) Long-Term Care Division Monitoring and Oversight Section (MOS). DHCS has also contracted with Care Coordinator Agencies (CCAs) to conduct the level of care assessment for ALW.

Note: A list of ALW facilities can be found at: https://www.dhcs.ca.gov/services/ltc/Pages/List-of-Approved-RCFE-ARF.aspx. Staff may **not** share eligibility information with CCAs without a signed Authorization for Release of Information (ROI).

B. Eligibility
To be eligible for the ALW, customers must reside in or agree to move to an ALW provider site and:
- Be at least 21 years of age.
- Have full scope Medi-Cal eligibility without a SOC.
- Meet the Nursing Facility Level of Care (NFLOC).
- Be aged or disabled (Note: blind customers for the ALW will need to be determined disabled to be part of this waiver).
- Have enough disposable income as determined by DHCS.

Customers are not eligible for the ALW if they:
- Reside in a residential care facility under the 53 state-only aid code.
- Are enrolled in another Home and Community-Based Services (HCBS) waiver.
- Will have a SOC after applying the excess board and care or Petit v. Bonta deduction. Refer to section C below.

Customers who receive Medi-Cal benefits with a SOC may be referred to a CCA by an ALW facility. When a customer asks the county about the ALW:
- Assist the customer in applying for Medi-Cal if they don't have an active or pending case.

- Re-evaluate eligibility and apply allowable deductions if they have SOC Medi-Cal and report a change in circumstance.
- Refer the customer to a participating CCA using the list: https://www.dhcs.ca.gov/services/ltc/Pages/List-of-Approved-CCAs.aspx

Customers from any county may request enrollment into this waiver if they are willing to move to an ALW provider site in another county. When the county of residence becomes aware that their customer is requesting enrollment into this waiver, the current county of residence will conduct any necessary Medi-Cal eligibility determination and initiate an intercounty transfer (ICT).

Note: An ICT is not required for married couples who are both receiving Medi-Cal where one spouse moves into a long-term care or assisted living facility in another county, and one stays in the current county.

C. Board and Care Deduction, Spousal Impoverishment (SI) and Institutional Deeming

When notified that a customer has moved into an ALW facility, staff must evaluate for no SOC programs (including SI provisions) and apply the appropriate Board and Care (B&C) deduction (excess B&C or the $315 Petit v. Bonta for personal care services, whichever is greater). Refer to Medi-Cal Program Guide (MPG) article 10, section 6.

If the customer was ineligible due to excess property screen for institutional deeming. Refer to MPG 05.18.01.B.

D. Aid Codes

There are no specific ALW aid codes. The following regular Medi-Cal aid codes are used when a customer is determined eligible for zero SOC Medi-Cal:

- 1H – for aged.
- 6H – for disabled.

E. Notice of Action (NOA)

If eligibility is based on the ALW, staff must issue one of the NOAs below:

- Approval for Enrollment in Assisted Living Waiver with Medi-Cal Changes for Beneficiary (MC 240).
- Approval for Enrollment in Assisted Living Waiver and Initial Medi-Cal (MC 241).
  Note: Only used when initial and ALW eligibility are determined simultaneously.
- Denial of Enrollment in Assisted Living Waiver and/or Medi-Cal Referral Form (MC 242).

Procedure:

Medi-Cal Processing Guide 25 - Eligibility Processes for HCBS Waivers

References:

ACWDL 90-01, 17-25, 18-19, 22-25, 23-13, 25-14
MEPM Letter No. 307
MEPM Article 19D
MEDIL 14-38

Sunset Date:
This policy will be reviewed for continuance by February 28, 2029.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Acquired Immune Deficiency Syndrome (AIDS) Waiver	Number	Page
	05.18.06	1 of 2

Revision Date:
January 1, 2025

Background:
The Department of Health Care Services (DHCS) received federal approval from the Centers for Medicare and Medicaid Services (CMS) for the Acquired Immune Deficiency Syndrome (AIDS) Waiver.

Purpose:
This section provides guidance for the processing of the AIDS Waiver. It has been revised to remove outdated Statewide Welfare System (SAWS) automation information and sunset review. There are no policy changes.

Policy:
The AIDS Waiver is limited to customers with a diagnosis of Human Immunodeficiency Virus (HIV) or AIDS with symptoms related to HIV disease who would otherwise require care in skilled nursing facilities or acute hospitals.

Services provided include:
- Case management
- Skilled nursing
- Attendant care
- Psycho-social counseling
- Non-emergency medical transportation
- Homemaker services
- Equipment and minor physical adaptations to the home
- Limited room and board supplement for infants and children in foster care
- Nutritional counseling
- Nutritional supplements/home delivered meals

A. Referring Agency
Medical certification for the AIDS Waiver is completed by the California Department of Public Health, Office of AIDS. The medical assessment for this waiver is completed before the customer is referred to the County. There should be few, if any, referrals of this type to the County.

B. Eligibility
Process using regular Medi-Cal eligibility rules including the application of Spousal Impoverishment (SI) provisions, if applicable. No other special Medi-Cal eligibility rules apply.

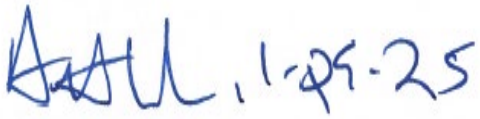
C. Notice of Action (NOA)
When a customer's Medi-Cal eligibility is approved or denied, use a regular Medi-Cal NOA.

Procedure:
Medi-Cal Processing Guide 25 - Eligibility Processes for Home and Community-Based Services (HCBS) Waiver and Program

References:
MEM PROC 19D
ACWDL 90-01, 17-25, 18-19
MEDIL 14-38

Sunset Date:
This policy will be reviewed for continuance by January 31, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services